



CHILDREN'S RIGHTS





WHO IS A CHILD?

WHAT ARE CHILD RIGHTS?

A child is typically defined as any person under the age of 18 years. This definition is given by the United Nations Convention on the Rights of the Child (UNCRC).

Child rights are the human rights specifically meant for children to ensure their well-being, development, protection, and participation in society. These rights recognize the special needs of children due to their vulnerability and dependence. The convention is built on four key principles: the right to survival, development, protection, and participation. These principles affirm that children must be provided with the essentials of life, such as food, shelter, healthcare, and education.





CHILD MARRIAGE

Child marriage is a formal or informal union where one or both parties are under the age of 18. It is a serious violation of children's rights and is recognized internationally as a harmful practice that robs children of their childhood, limits their opportunities, and endangers their health and well-being. Although it affects both boys and girls, girls are disproportionately impacted and are more likely suffer long term consequences.

Child marriage often results from deep-rooted gender inequality, poverty, lack of education, cultural traditions, and social pressures. In many communities, girls are married off at an early age to reduce the economic burden on the family or to protect family honor.



CHILDREN'S RIGHT TO PARTICIPATION

Children's right to participation is one of the four core principles of the United Nations Convention on the Rights of the Child (UNCRC). It means that children have the right to be heard, to express their opinions freely, and to have those opinions taken seriously in all matters affecting them, according to their age and maturity. This right is most clearly outlined in Article 12 of the UNCRC, which states that every child capable of forming their own views has the right to express those views freely, and that those views should be given due weight in accordance with the child's age and maturity. It also includes the child's right to be heard in judicial and administrative proceedings, either directly or through a representative.



RIGHT TO EDUCATION

The Right to Education is a fundamental human right recognized both internationally and nationally. It ensures that every child has access to quality education without discrimination.

INTERNATIONAL PERSPECTIVE:

Under the United Nations Convention on the Rights of the Child (UNCRC), especially Article 28, every child has the right to free and compulsory primary education. The convention urges countries to make secondary and higher education accessible to all, encourage regular attendance, and reduce dropout rates.



INDIAN PERSPECTIVE:

The Right to Education (RTE) is enshrined in Article 21A of the Indian Constitution, which was added through the 86th Constitutional Amendment Act, 2002. It states:

"The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine."

This right was made operational through the Right of Children to Free and Compulsory Education Act, 2009, commonly known as the RTE Act. Under this Act:

- Education is free and compulsory for all children aged 6 to 14.
- No child shall be held back, expelled, or required to pass a board exam until completion of elementary education.
- The Act mandates the maintenance of specific standards for school infrastructure, teacher-student ratio, and quality of education.
- It prohibits physical punishment, mental harassment, discrimination, and private tuitions by teachers.
- It reserves 25% of seats in private unaided schools for children from disadvantaged and economically weaker sections.





ICDS (INTEGRATED CHILD DEVELOPMENT SERVICES)

ICDS (Integrated Child Development Services) is one of the world's largest and most comprehensive programs for early childhood care and development, launched by the Government of India in 1975. It aims to provide a strong foundation for children under the age of six, especially from disadvantaged backgrounds, by addressing their health, nutrition, and educational needs.

Objectives of ICDS:

- Improve the nutritional and health status of children below 6 years.
- Lay the foundation for proper psychological, physical, and social development.
- Reduce the incidence of mortality, morbidity, malnutrition, and school dropouts.
- Achieve effective coordination of policy and implementation among various departments.
- Enhance the capability of mothers to care for the health and nutritional needs of their children.



ICDS plays a crucial role in early childhood development, especially in rural and underserved communities. By combining health, nutrition, and education interventions, it helps ensure that children not only survive but also thrive during their most critical developmental years. The program is central to achieving India's goals for child development, gender equality, and improved public health.

CHILD LABOUR

Child labour refers to the employment of children in any form of work that deprives them of their childhood, education, potential, and dignity, and is harmful to their physical and mental development. It is a serious violation of children's rights and is prevalent in many parts of the world, including India.

According to the Child Labour (Prohibition and Regulation) Amendment Act, 2016, in India:

- A child is defined as any person below 14 years of age.
- The Act prohibits employment of children below 14 years in any occupation or process.
- It also prohibits adolescents (14–18 years) from working in hazardous occupations or processes.
- However, the law permits children to help in family enterprises or perform as artists in entertainment industry after school hours or during vacations, provided it doesn't hamper their education and well-being.



Steps Taken to Eradicate Child Labour:

- **Legislation:** The Child Labour Act, the Right to Education Act (2009), and Juvenile Justice Act work together to protect children.
- **Rehabilitation Programs:** The government runs programs like National Child Labour Project (NCLP) to rescue and rehabilitate working children.
- **Public Awareness Campaigns:** Educating communities about the dangers of child labour and the importance of education.
- **Involvement of NGOs and Civil Society:** Organizations play a vital role in rescuing, rehabilitating, and supporting child labourers.

Child labour deprives children of a safe, healthy, and fulfilling life. It is not just a legal issue but a social and moral one. Combating it requires strong laws, effective implementation, public awareness, and societal change, ensuring that every child enjoys the right to education, protection, and a dignified childhood.



JUVENILE JUSTICE SYSTEM

The Juvenile Justice System is a legal framework designed specifically to address offenses committed by individuals who are below the age of 18. Its primary focus is on reformation and rehabilitation rather than punishment, recognizing that children and adolescents are still developing emotionally and mentally and may be more capable of change.

Juvenile Justice in India:

India's juvenile justice framework is governed by the Juvenile Justice (Care and Protection of Children) Act, 2015, which replaced the earlier 2000 Act. This law aligns with the United Nations Convention on the Rights of the Child (UNCRC) and seeks to balance the welfare of the child with the need to address serious offenses.



JUSTICE



LAWS



PEACE



Features of the Juvenile Justice Act, 2015:



- **Age of Juvenility:** A child is defined as anyone under the age of 18.
- **Juvenile Justice Board (JJB):** A special body that handles cases involving children in conflict with law. It consists of a magistrate and two social workers.
- **Child Welfare Committee (CWC):** Deals with children in need of care and protection.
- **Rehabilitation and Social Reintegration:** The focus is on reform through counseling, education, vocational training, and care homes.
- **Special Provision for Heinous Offenses (Age 16–18):** In certain cases, if a child aged 16–18 commits a heinous crime (punishable with more than 7 years in adult law), the JJB can recommend that the child be tried as an adult after preliminary assessment.

THANKS!

